

STATE OF NEW YORK

8852--A

IN SENATE

January 9, 2026

Introduced by Sen. HARCKHAM -- read twice and ordered printed, and when printed to be committed to the Committee on Local Government -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT in relation to authorizing the county of Putnam to lease certain lands used as parklands

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subject to the provisions of this act, the county of
2 Putnam, acting by and through its governing body and upon such terms and
3 conditions as determined by such body is hereby authorized to discontin-
4 ue as parklands and lease at fair market value to Homeland Towers, LLC
5 for a term not to exceed thirty years the lands more particularly
6 described in section three of this act for the purposes of installing a
7 160 foot cellular tower with associated equipment shelter, backup gener-
8 ators, and telecommunications equipment.

9 § 2. The authorization provided in section one of this act shall be
10 effective only upon the condition that the county of Putnam dedicate the
11 proceeds from the lease toward the acquisition of new parklands and/or
12 capital improvements to existing park and recreational facilities.

13 § 3. The parklands authorized by section one of this act to be discon-
14 tinued as parklands and leased are described as follows:

15 Parcel 1:

16 SITUATED IN THE TOWN OF CARMEL, COUNTY OF PUTNAM AND STATE OF NEW YORK:

17 BEGINNING AT A POINT ON THE WESTERLY LINE OF HILL STREET, WHERE THE SAME
18 IS INTERSECTED BY THE NORTHERLY LINE OF HILL CEMETERY;

19 THENCE RUNNING ALONG THE NORTHERLY, WESTERLY AND SOUTHERLY LINE OF SAID
20 HILL CEMETERY THE FOLLOWING COURSES AND DISTANCES:

21 NORTH 61 DEGREES 30 MINUTES 25 SECONDS WEST 82.46 FEET;

22 SOUTH 34 DEGREES 21 MINUTES 55 SECONDS WEST 117.83 FEET AND;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD13376-03-6

1 SOUTH 62 DEGREES 46 MINUTES 15 SECONDS EAST 74.51 FEET TO A POINT ON THE
2 WESTERLY LINE OF HILL STREET;

3 THENCE TURNING AND RUNNING ALONG SAID WESTERLY LINE OF HILL STREET, THE
4 FOLLOWING COURSES AND DISTANCES:
5 SOUTH 30 DEGREES 20 MINUTES 15 SECONDS WEST 180.73 FEET;
6 SOUTH 28 DEGREES 57 MINUTES 15 SECONDS WEST 100.55 FEET;
7 NORTH 64 DEGREES 05 MINUTES 05 SECONDS WEST 12.50 FEET AND
8 SOUTH 25 DEGREES 54 MINUTES 55 SECONDS WEST 64.15 FEET TO THE NORTHERLY
9 LINE OF LANDS SHOWN ON A MAP ENTITLED "SUBDIVISION MAP OF RED MILLS
10 NORTH", SAID MAP FILED IN THE PUTNAM COUNTY CLERK'S OFFICE, DIVISION OF
11 LAND RECORDS, ON NOVEMBER 9, 1965, AS MAP NO. 974C:

12 THENCE TURNING AND RUNNING ALONG THE NORTHERLY AND WESTERLY LINE OF
13 LANDS AS SHOWN ON SAID MAP NO. 974C, THE FOLLOWING COURSES AND
14 DISTANCES:
15 NORTH 64 DEGREES 05 MINUTES 05 SECONDS WEST 210.00 FEET;
16 SOUTH 18 DEGREES 38 MINUTES 48 SECONDS WEST 40.00 FEET;
17 SOUTH 87 DEGREES 50 MINUTES 21 SECONDS WEST 251.61 FEET;
18 NORTH 82 DEGREES 42 MINUTES 45 SECONDS WEST 400.00 FEET;
19 SOUTH 17 DEGREES 17 MINUTES 45 SECONDS WEST 253.86 FEET;
20 SOUTH 82 DEGREES 42 MINUTES 45 SECONDS EAST 61.36 FEET AND
21 SOUTH 07 DEGREES 17 MINUTES 15 SECONDS WEST 203.15 FEET TO A POINT ON
22 THE NORTHERLY LINE OF LANDS AS SHOWN ON A MAP ENTITLED "SUBDIVISION PLAT
23 PREPARED FOR WALLACE AND GRACE BARRETT", SAID MAP FILED IN THE PUTNAM
24 COUNTY CLERK'S OFFICE, DIVISION OF LAND RECORDS, ON SEPTEMBER 9, 1971,
25 AS MAP NO. 1241;

26 THENCE TURNING AND RUNNING ALONG THE NORTHERLY AND WESTERLY LINE OF LAND
27 AS SHOWN ON SAID MAP NO. 1241;
28 NORTH 82 DEGREES 30 MINUTES 05 SECONDS WEST 141.45 FEET AND
29 SOUTH 14 DEGREES 45 MINUTES 20 SECONDS WEST 432.17 FEET TO LANDS SHOWN
30 ON A MAP
31 ENTITLED, "MAP OF RED MILLS I", SAID MAP FILED IN THE PUTNAM COUNTY
32 CLERK'S OFFICE, DIVISION OF LAND RECORDS, ON APRIL 15, 1963 AS MAP NO.
33 974;

34 THENCE RUNNING ALONG THE WESTERLY LINE OF LANDS AS SHOWN ON SAID MAP NO.
35 974, THE FOLLOWING COURSES AND DISTANCES:
36 SOUTH 05 DEGREES 45 MINUTES 35 SECONDS EAST 334.67 FEET;
37 SOUTH 63 DEGREES 46 MINUTES 25 SECONDS EAST 20.00 FEET;
38 SOUTH 09 DEGREES 36 MINUTES 15 SECONDS EAST 108.99 FEET;
39 SOUTH 31 DEGREES 28 MINUTES 45 SECONDS WEST 115.00 FEET;
40 SOUTH 58 DEGREES 31 MINUTES 15 SECONDS EAST 130.00 FEET;
41 SOUTH 31 DEGREES 28 MINUTES 45 SECONDS WEST 50.00 FEET;
42 NORTH 58 DEGREES 31 MINUTES 15 SECONDS WEST 85.00 FEET;
43 SOUTH 31 DEGREES 28 MINUTES 45 SECONDS WEST 190.00 FEET;
44 NORTH 58 DEGREES 31 MINUTES 15 SECONDS WEST 110.00 FEET;
45 SOUTH 20 DEGREES 10 MINUTES 05 SECONDS WEST 101.98 FEET;
46 SOUTH 31 DEGREES 28 MINUTES 45 SECONDS WEST 520.00 FEET;
47 SOUTH 05 DEGREES 56 MINUTES 55 SECONDS WEST 273.03 FEET AND
48 SOUTH 24 DEGREES 31 MINUTES 15 SECONDS EAST 100.00 FEET TO LAND SHOWN ON
49 A MAP ENTITLED, "MAP OF RED MILLS II", SAID MAP FILED IN THE PUTNAM
50 COUNTY CLERK'S OFFICE, DIVISION OF LAND RECORDS, ON JUNE 16, 1965, AS
51 MAP NO. 974B;

1 THENCE TURNING AND RUNNING ALONG THE NORTHERLY LINE OF LANDS AS SHOWN ON
2 SAID MAP NO. 974B, THE FOLLOWING COURSES AND DISTANCES;
3 SOUTH 65 DEGREES 28 MINUTES 45 SECONDS WEST 200.00 FEET;
4 SOUTH 24 DEGREES 31 MINUTES 15 SECONDS EAST 177.00 FEET;
5 SOUTH 65 DEGREES 28 MINUTES 45 SECONDS WEST 50.00 FEET;
6 NORTH 24 DEGREES 31 MINUTES 15 SECONDS WEST 177.00 FEET;
7 SOUTH 65 DEGREES 28 MINUTES 45 SECONDS WEST 200.00 FEET;
8 NORTH 30 DEGREES 03 MINUTES 15 SECONDS WEST 310.14 FEET;
9 NORTH 05 DEGREES 36 MINUTES 55 SECONDS EAST 288.52 FEET;
10 NORTH 31 DEGREES 28 MINUTES 45 SECONDS EAST 468.52 FEET AND
11 NORTH 58 DEGREES 31 MINUTES 15 SECONDS WEST 200.00 FEET TO THE EASTERLY
12 TERMINUS OF RED MILLS ROAD, AS SHOWN ON SAID MAP NO. 974B;

13 THENCE RUNNING ALONG SAME, ALONG A CURVE TO THE LEFT, HAVING A RADIUS OF
14 64.00 FEET AND A CENTRAL ANGLE OF 24 DEGREES 11 MINUTES 30 SECONDS, A
15 DISTANCE OF 273.62 FEET TO A POINT OF TANGENCY;

16 THENCE CONTINUING ALONG SAID RED MILLS ROAD AND ALSO CONTINUING ALONG
17 THE NORTHERLY LINE OF SAID MAP NO. 974B, THE FOLLOWING COURSES AND
18 DISTANCES:
19 SOUTH 29 DEGREES 42 MINUTES 45 SECONDS EAST 38.08 FEET;
20 NORTH 58 DEGREES 31 MINUTES 15 SECONDS WEST 187.05 FEET;
21 SOUTH 31 DEGREES 28 MINUTES 45 SECONDS WEST 304.69 FEET AND
22 NORTH 58 DEGREES 31 MINUTES 15 SECONDS WEST 93.01 FEET TO A POINT ON THE
23 EASTERLY LINE OF LANDS SHOWN ON A MAP ENTITLED "RICHSTONE ESTATES", SAID
24 MAP FILED IN THE PUTNAM COUNTY CLERK'S OFFICE, DIVISION OF LAND RECORDS,
25 ON JULY 15, 1985, AS MAP NO. 2059;

26 THENCE TURNING AND RUNNING ALONG THE EASTERLY LINE OF LANDS SHOWN ON
27 SAID MAP NO. 2059, THE FOLLOWING COURSES AND DISTANCES:
28 NORTH 05 DEGREES 36 MINUTES 55 SECONDS EAST 115.53 FEET;
29 NORTH 04 DEGREES 18 MINUTES 15 SECONDS EAST 102.10 FEET;
30 NORTH 06 DEGREES 30 MINUTES 15 SECONDS EAST 165.10 FEET;
31 NORTH 89 DEGREES 08 MINUTES 35 SECONDS WEST 35.44 FEET; AND
32 NORTH 77 DEGREES 03 MINUTES 04 SECONDS WEST 172.51 FEET TO A POINT ON
33 THE EASTERLY LINE OF LANDS SHOWN ON A MAP ENTITLED "MAP OF LAKEWOOD",
34 SAID MAP FILED IN THE PUTNAM COUNTY CLERK'S OFFICE, DIVISION OF LAND
35 RECORDS, ON JUNE 15, 1960, AS MAP NO. 883;

36 THENCE TURNING AND RUNNING ALONG THE EASTERLY LINE OF LANDS AS SHOWN ON
37 SAID MAP NO. 883 THE FOLLOWING COURSES AND DISTANCES:
38 NORTH 11 DEGREES 52 MINUTES 45 SECONDS EAST 225.00 FEET;
39 NORTH 76 DEGREES 43 MINUTES 25 SECONDS WEST 100.00 FEET; AND
40 NORTH 11 DEGREES 52 MINUTES 45 SECONDS EAST 54.55 FEET TO A POINT ON THE
41 SOUTHERLY LINE OF BEACH ROAD;

42 THENCE RUNNING ALONG THE SOUTHERLY, EASTERLY AND NORTHERLY LINE OF SAID
43 BEACH ROAD, THE FOLLOWING COURSES AND DISTANCES, RUNNING ALONG A CURVE
44 TO THE LEFT, HAVING A RADIUS OF 200.00 FEET A CENTRAL ANGLE OF 04
45 DEGREES 14 MINUTES 13 SECONDS, A DISTANCE OF 14.79 FEET TO A POINT;
46 THENCE NORTH 02 DEGREES 16 MINUTES 15 SECONDS EAST 50.00 FEET;
47 THENCE RUNNING ALONG A CURVE TO THE RIGHT, HAVING A RADIUS OF 150.00
48 FEET, A DISTANCE OF 30.33 FEET TO A POINT ON THE WESTERLY SHORE OF LAKE
49 MACGREGOR;

1 THENCE CONTINUING ALONG THE EASTERLY LINE OF LAND AS SHOWN ON MAP 883
2 AND ALSO RUNNING ALONG THE WESTERLY SHORE OF LAKE MACGREGOR, THE FOLLOW-
3 ING COURSES AND DISTANCES:
4 NORTH 06 DEGREES 43 MINUTES 00 SECONDS EAST 123.46 FEET;
5 NORTH 12 DEGREES 29 MINUTES 00 SECONDS EAST 77.40 FEET;
6 NORTH 13 DEGREES 01 MINUTES 35 SECONDS EAST 52.29 FEET;
7 NORTH 29 DEGREES 27 MINUTES 00 SECONDS EAST 57.90 FEET;
8 NORTH 11 DEGREES 22 MINUTES 45 SECONDS EAST 100.60 FEET;
9 NORTH 13 DEGREES 37 MINUTES 55 SECONDS EAST 101.12 FEET;
10 NORTH 05 DEGREES 31 MINUTES 10 SECONDS EAST 19.28 FEET;
11 NORTH 03 DEGREES 05 MINUTES 00 SECONDS WEST 37.10 FEET;
12 NORTH 05 DEGREES 17 MINUTES 00 SECONDS EAST 44.00 FEET;
13 NORTH 03 DEGREES 34 MINUTES 10 SECONDS WEST 101.15 FEET;
14 NORTH 11 DEGREES 33 MINUTES 00 SECONDS WEST 48.73 FEET; AND
15 NORTH 00 DEGREES 10 MINUTES 00 SECONDS EAST 35.60 FEET TO LANDS SHOWN ON
16 A MAP ENTITLED, "MAP OF SECTION 1 OF LAKE MACGREGOR", SAID MAP FILED IN
17 THE PUTNAM COUNTY CLERK'S OFFICE, DIVISION OF LAND RECORDS, ON AUGUST
18 21, 1957, AS MAP NO. 820;

19 THENCE RUNNING ALONG THE EASTERLY LINE OF LANDS AS SHOWN ON MAP NO. 820,
20 AND ALSO RUNNING ALONG THE WESTERLY SHORE OF LAKE MACGREGOR, THE FOLLOW-
21 ING COURSES AND DISTANCES:
22 NORTH 09 DEGREES 11 MINUTES 30 SECONDS EAST 18.04 FEET;
23 NORTH 20 DEGREES 33 MINUTES 00 SECONDS EAST 68.40 FEET;
24 NORTH 13 DEGREES 40 MINUTES 00 SECONDS EAST 21.00 FEET;
25 NORTH 13 DEGREES 54 MINUTES 20 SECONDS EAST 50.07 FEET;
26 NORTH 07 DEGREES 09 MINUTES 00 SECONDS EAST 61.60 FEET;
27 NORTH 27 DEGREES 31 MINUTES 00 SECONDS EAST 22.37 FEET;
28 NORTH 08 DEGREES 50 MINUTES 00 SECONDS EAST 45.60 FEET;
29 NORTH 02 DEGREES 52 MINUTES 00 SECONDS EAST 20.00 FEET;
30 NORTH 19 DEGREES 05 MINUTES 00 SECONDS WEST 15.10 FEET;
31 NORTH 00 DEGREES 25 MINUTES 10 SECONDS WEST 11.71 FEET;
32 NORTH 62 DEGREES 01 MINUTES 00 SECONDS EAST 17.00 FEET;
33 NORTH 12 DEGREES 45 MINUTES 00 SECONDS EAST 54.40 FEET;
34 NORTH 03 DEGREES 58 MINUTES 00 SECONDS WEST 24.50 FEET;
35 NORTH 09 DEGREES 08 MINUTES 20 SECONDS WEST 46.11 FEET;
36 NORTH 01 DEGREES 00 MINUTES 00 SECONDS EAST 56.90 FEET;
37 NORTH 14 DEGREES 49 MINUTES 35 SECONDS EAST 35.30 FEET;
38 NORTH 25 DEGREES 18 MINUTES 00 SECONDS EAST 60.80 FEET;
39 NORTH 21 DEGREES 00 MINUTES 00 SECONDS EAST 30.20 FEET;
40 NORTH 15 DEGREES 26 MINUTES 00 SECONDS EAST 28.92 FEET;
41 NORTH 03 DEGREES 59 MINUTES 00 SECONDS EAST 81.80 FEET;
42 NORTH 17 DEGREES 06 MINUTES 35 SECONDS EAST 40.15 FEET AND
43 NORTH 02 DEGREES 48 MINUTES 50 SECONDS EAST 54.24 FEET TO LANDS SHOWN ON
44 A MAP ENTITLED "MAP OF SECTION 2 OF LAKE MACGREGOR", SAID MAP FILED IN
45 THE PUTNAM COUNTY CLERK'S OFFICE, DIVISION OF LAND RECORDS, ON MARCH 8,
46 1960, AS MAP NO. 820B;

47 THENCE RUNNING ALONG THE EASTERLY LINE OF LANDS AS SHOWN ON MAP NO. 820B
48 AND ALSO ALONG THE WESTERLY AND NORTHERLY SHORE OF LAKE MACGREGOR, THE
49 FOLLOWING COURSES AND DISTANCES:

50 NORTH 03 DEGREES 44 MINUTES 50 SECONDS WEST 40.86 FEET;
51 NORTH 08 DEGREES 09 MINUTES 00 SECONDS EAST 35.40 FEET;
52 NORTH 26 DEGREES 33 MINUTES 00 SECONDS EAST 24.60 FEET;
53 NORTH 57 DEGREES 36 MINUTES 00 SECONDS EAST 107.60 FEET;

1 NORTH 54 DEGREES 21 MINUTES 10 SECONDS EAST 38.34 FEET;
2 NORTH 38 DEGREES 05 MINUTES 00 SECONDS EAST 47.00 FEET;
3 NORTH 28 DEGREES 30 MINUTES 00 SECONDS EAST 79.60 FEET;
4 NORTH 22 DEGREES 12 MINUTES 00 SECONDS EAST 36.50 FEET;
5 NORTH 22 DEGREES 39 MINUTES 10 SECONDS EAST 57.66 FEET;
6 NORTH 31 DEGREES 02 MINUTES 00 SECONDS EAST 27.89 FEET;
7 NORTH 53 DEGREES 28 MINUTES 00 SECONDS EAST 82.60 FEET;
8 NORTH 76 DEGREES 56 MINUTES 30 SECONDS EAST 17.06 FEET;
9 SOUTH 56 DEGREES 55 MINUTES 00 SECONDS EAST 73.40 FEET;
10 SOUTH 69 DEGREES 25 MINUTES 10 SECONDS EAST 19.79 FEET;
11 SOUTH 84 DEGREES 00 MINUTES 00 SECONDS EAST 38.20 FEET; AND
12 SOUTH 82 DEGREES 00 MINUTES 00 SECONDS EAST 53.50 FEET TO A POINT;

13 THENCE LEAVING THE NORTHERLY SHORE OF LAKE MACGREGOR, AND CONTINUING
14 ALONG THE EASTERLY LINE OF LANDS AS SHOWN ON MAP NO. 820B NORTH 15
15 DEGREES 04 MINUTES 15 SECONDS EAST 345.00 FEET TO A POINT ON THE SOUTH-
16 ERLY LINE OF MACGREGOR DRIVE;

17 THENCE RUNNING ALONG SAID SOUTHERLY LINE OF MACGREGOR DRIVE, AND ALSO
18 ALONG THE SOUTHERLY AND EASTERLY LINE OF LANDS AS SHOWN ON A MAP ENTI-
19 TLED "SUBDIVISION MAP OF SECTION 3 OF LAKE MACGREGOR" SAID MAP FILED IN
20 THE PUTNAM COUNTY CLERK'S OFFICE, DIVISION OF LAND RECORDS ON NOVEMBER
21 9, 1965, AS MAP NO. 820C, THE FOLLOWING COURSES AND DISTANCES:

22 SOUTH 72 DEGREES 35 MINUTES 35 SECONDS EAST 12.55 FEET TO A POINT OF
23 CURVE;

24 THENCE RUNNING ALONG A CURVE TO THE LEFT, HAVING A RADIUS OF 175.00
25 FEET, A DISTANCE OF 125.17 FEET;

26 THENCE RUNNING ALONG A CURVE TO THE LEFT, HAVING A RADIUS OF 25.00 FEET,
27 A DISTANCE OF 36.14 FEET TO A POINT OF TANGENCY; THENCE SOUTH 16 DEGREES
28 23 MINUTES 35 SECONDS EAST 56.97 FEET TO A POINT OF CURVE;

29 THENCE RUNNING ALONG A CURVE TO THE LEFT, HAVING A RADIUS OF 125.00
30 FEET, A DISTANCE OF 48.00 FEET TO A POINT OF TANGENCY; THENCE
31 SOUTH 38 DEGREES 23 MINUTES 35 SECONDS EAST 81.71 FEET;
32 NORTH 80 DEGREES 36 MINUTES 25 SECONDS EAST 175.00 FEET;
33 SOUTH 60 DEGREES 23 MINUTES 35 SECONDS EAST 100.00 FEET AND
34 NORTH 29 DEGREES 36 MINUTES 25 SECONDS EAST 657.59 FEET;
35 NORTH 71 DEGREES 46 MINUTES 55 SECONDS WEST 100.00 FEET;
36 NORTH 69 DEGREES 22 MINUTES 05 SECONDS WEST 150.55 FEET;
37 NORTH 43 DEGREES 51 MINUTES 10 SECONDS EAST 54.55 FEET;
38 NORTH 65 DEGREES 30 MINUTES 25 SECONDS WEST 244.01 FEET AND
39 NORTH 67 DEGREES 17 MINUTES 08 SECONDS WEST 616.34 FEET TO A POINT ON
40 THE EASTERLY LINE OF HATFIELD ROAD;

41 THENCE RUNNING ALONG THE NORTHERLY TERMINUS OF SAID HATFIELD ROAD, AND
42 ALSO ALONG LANDS NOW OR FORMERLY BELONGING TO ERIC GRAYSON AND NANCY
43 KEAR JOHNSON NORTH 67 DEGREES 18 MINUTES 15 SECONDS WEST 276.91 FEET TO
44 LANDS NOW OR FORMERLY BELONGING TO RONALD G. JEDLICKS;

45 THENCE RUNNING ALONG SAID LANDS OF JEDLICKS, THE FOLLOWING COURSES AND
46 DISTANCES:

47 NORTH 67 DEGREES 25 MINUTES 10 SECONDS WEST 211.14 FEET;
48 NORTH 66 DEGREES 13 MINUTES 30 SECONDS WEST 196.31 FEET;

1 NORTH 68 DEGREES 35 MINUTES 30 SECONDS WEST 245.18 FEET AND
2 NORTH 67 DEGREES 10 MINUTES 20 SECONDS WEST 251.53 FEET TO LANDS NOW OR
3 FORMERLY BELONGING TO URIEL B. AND CLEMMIE G. WISHART;

4 THENCE TURNING AND RUNNING ALONG SAID LANDS OF WISHART;
5 NORTH 23 DEGREES 03 MINUTES 44 SECONDS EAST 460.07 FEET AND
6 NORTH 68 DEGREES 09 MINUTES 29 SECONDS WEST 183.86 FEET TO A POINT ON
7 THE EASTERLY LINE OF AUSTIN ROAD;

8 THENCE TURNING AND RUNNING ALONG SAID EASTERLY LINE OF AUSTIN ROAD, THE
9 FOLLOWING COURSES AND DISTANCES:
10 NORTH 23 DEGREES 00 MINUTES 30 SECONDS EAST 21.93 FEET;
11 NORTH 17 DEGREES 51 MINUTES 00 SECONDS EAST 47.91 FEET;
12 NORTH 21 DEGREES 59 MINUTES 00 SECONDS EAST 79.60 FEET;
13 SOUTH 68 DEGREES 01 MINUTES 00 SECONDS EAST 0.60 FEET;
14 NORTH 25 DEGREES 00 MINUTES 30 SECONDS EAST 72.48 FEET;
15 NORTH 27 DEGREES 35 MINUTES 20 SECONDS EAST 70.11 FEET;
16 NORTH 36 DEGREES 13 MINUTES 15 SECONDS EAST 35.03 FEET;
17 NORTH 36 DEGREES 48 MINUTES 35 SECONDS EAST 39.91 FEET;
18 NORTH 58 DEGREES 26 MINUTES 10 SECONDS WEST 1.00 FOOT;
19 NORTH 31 DEGREES 33 MINUTES 50 SECONDS EAST 91.66 FEET;
20 NORTH 23 DEGREES 55 MINUTES 15 SECONDS EAST 43.64 FEET;
21 NORTH 19 DEGREES 56 MINUTES 10 SECONDS EAST 44.00 FEET AND
22 NORTH 25 DEGREES 19 MINUTES 00 SECONDS EAST 19.22 FEET TO LANDS NOW OR
23 FORMERLY BELONGING TO CENTRAL SCHOOL DISTRICT NO. 1;

24 THENCE TURNING AND RUNNING ALONG SAID LANDS THE FOLLOWING COURSES AND
25 DISTANCES:
26 SOUTH 71 DEGREES 57 MINUTES 40 SECONDS EAST 921.10 FEET;
27 NORTH 18 DEGREES 42 MINUTES 00 SECONDS EAST 298.55 FEET;
28 SOUTH 67 DEGREES 15 MINUTES 50 SECONDS EAST 59.38 FEET;
29 SOUTH 55 DEGREES 38 MINUTES 40 SECONDS EAST 62.69 FEET;
30 NORTH 14 DEGREES 32 MINUTES 55 SECONDS EAST 513.81 FEET AND
31 NORTH 13 DEGREES 35 MINUTES 30 SECONDS EAST 68.28 FEET TO LANDS NOW OR
32 FORMERLY BELONGING TO CENTRAL HUDSON GAS AND ELECTRIC CORP.

33 THENCE TURNING AND RUNNING ALONG SAID LANDS OF CENTRAL HUDSON GAS AND
34 ELECTRIC CORP., THE FOLLOWING COURSES AND DISTANCES:
35 SOUTH 68 DEGREES 47 MINUTES 49 SECONDS EAST 141.44 FEET;
36 SOUTH 58 DEGREES 16 MINUTES 01 SECONDS EAST 1018.50 FEET;
37 SOUTH 19 DEGREES 20 MINUTES 37 SECONDS WEST 1077.04 FEET;
38 SOUTH 18 DEGREES 32 MINUTES 36 SECONDS WEST 295.98 FEET;
39 SOUTH 05 DEGREES 14 MINUTES 40 SECONDS EAST 86.77 FEET;
40 NORTH 19 DEGREES 59 MINUTES 45 SECONDS EAST 267.68 FEET;
41 NORTH 15 DEGREES 35 MINUTES 00 SECONDS EAST 35.54 FEET;
42 NORTH 17 DEGREES 25 MINUTES 50 SECONDS EAST 40.42 FEET;
43 NORTH 11 DEGREES 02 MINUTES 05 SECONDS EAST 31.86 FEET;
44 SOUTH 81 DEGREES 35 MINUTES 10 SECONDS EAST 3.90 FEET;
45 NORTH 18 DEGREES 39 MINUTES 30 SECONDS EAST 316.88 FEET AND
46 NORTH 20 DEGREES 39 MINUTES 10 SECONDS EAST 152.09 FEET TO LANDS NOW OR
47 FORMERLY BELONGING TO THE COUNTY OF PUTNAM;

48 THENCE TURNING AND RUNNING ALONG SAID LANDS OF THE COUNTY OF PUTNAM, THE
49 FOLLOWING COURSES AND DISTANCES:
50 SOUTH 69 DEGREES 33 MINUTES 30 SECONDS EAST 209.07 FEET;
51 NORTH 19 DEGREES 07 MINUTES 50 SECONDS EAST 211.64 FEET AND

1 NORTH 70 DEGREES 01 MINUTES 15 SECONDS WEST 210.80 FEET TO LANDS NOW OR
2 FORMERLY BELONGING TO CENTRAL HUDSON GAS AND ELECTRIC CORP.;

3 THENCE TURNING AND RUNNING ALONG SAID LANDS OF CENTRAL HUDSON GAS AND
4 ELECTRIC CORP., THE FOLLOWING COURSES AND DISTANCES:
5 NORTH 19 DEGREES 44 MINUTES 20 SECONDS EAST 163.38 FEET;
6 NORTH 18 DEGREES 30 MINUTES 00 SECONDS EAST 154.78 FEET AND
7 NORTH 19 DEGREES 26 MINUTES 27 SECONDS EAST 107.23 FEET TO LANDS NOW OR
8 FORMERLY BELONGING TO KINGS POND CONDOMINIUM;

9 THENCE RUNNING ALONG SAID LANDS OF KING POND CONDOMINIUM, THE FOLLOWING
10 COURSES AND DISTANCES:
11 NORTH 17 DEGREES 52 MINUTES 20 SECONDS EAST 186.28 FEET;
12 NORTH 21 DEGREES 26 MINUTES 00 SECONDS EAST 218.40 FEET;
13 SOUTH 60 DEGREES 18 MINUTES 20 SECONDS EAST 162.42 FEET;
14 SOUTH 64 DEGREES 31 MINUTES 55 SECONDS EAST 40.50 FEET;
15 SOUTH 62 DEGREES 33 MINUTES 35 SECONDS EAST 83.60 FEET;
16 NORTH 30 DEGREES 32 MINUTES 00 SECONDS EAST 369.27 FEET;
17 NORTH 30 DEGREES 13 MINUTES 00 SECONDS EAST 91.94 FEET;
18 NORTH 30 DEGREES 00 MINUTES 50 SECONDS EAST 87.14 FEET TO LANDS NOW OR
19 FORMERLY BELONGING TO WILLIAM A. & VIVIAN MACMILLAN;

20 THENCE TURNING AND RUNNING ALONG SAID LANDS OF MACMILLAN THE FOLLOWING
21 COURSES AND DISTANCES:
22 SOUTH 59 DEGREES 38 MINUTES 40 SECONDS EAST 406.49 FEET;
23 SOUTH 72 DEGREES 31 MINUTES 15 SECONDS EAST 334.73 FEET AND
24 NORTH 15 DEGREES 56 MINUTES 50 SECONDS EAST 150.05 FEET TO LANDS NOW OR
25 FORMERLY BELONGING TO RAFAEL III AND ROBERT E. BRACHE;

26 THENCE TURNING AND RUNNING ALONG SAID LANDS OF BRACHE, THE FOLLOWING
27 COURSES AND DISTANCES:
28 SOUTH 88 DEGREES 59 MINUTES 10 SECONDS EAST 218.72 FEET;
29 NORTH 05 DEGREES 52 MINUTES 50 SECONDS EAST 38.62 FEET;
30 NORTH 42 DEGREES 15 MINUTES 55 SECONDS WEST 191.90 FEET;
31 NORTH 72 DEGREES 31 MINUTES 15 SECONDS WEST 72.49 FEET;
32 SOUTH 44 DEGREES 44 MINUTES 25 SECONDS WEST 221.05 FEET TO LANDS NOW OR
33 FORMERLY BELONGING TO WILLIAM A. AND VIVIAN MACMILLAN;

34 THENCE RUNNING ALONG SAID LANDS OF MACMILLAN;
35 NORTH 72 DEGREES 31 MINUTES 15 SECONDS WEST 176.28 FEET AND
36 NORTH 59 DEGREES 38 MINUTES 40 SECONDS WEST 388.02 FEET TO LANDS NOW OR
37 FORMERLY BELONGING TO KINGS POND CONDOMINIUM;

38 THENCE TURNING AND RUNNING ALONG SAID LANDS OF KINGS POND CONDOMINIUM,
39 THE FOLLOWING COURSES AND DISTANCES:
40 NORTH 31 DEGREES 43 MINUTES 10 SECONDS EAST 55.51 FEET;
41 NORTH 33 DEGREES 16 MINUTES 20 SECONDS EAST 100.44 FEET;
42 NORTH 32 DEGREES 57 MINUTES 40 SECONDS EAST 99.39 FEET;
43 NORTH 32 DEGREES 52 MINUTES 35 SECONDS EAST 84.36 FEET AND
44 NORTH 31 DEGREES 47 MINUTES 05 SECONDS EAST 88.55 FEET TO LANDS NOW OR
45 FORMERLY BELONGING TO CHRISTIAN AND JOHN STUCKART;

46 THENCE TURNING AND RUNNING ALONG SAID LANDS OF STUCKART, AND ALSO ALONG
47 LANDS NOW OR FORMERLY BELONGING TO WINIFRED W. LUNNING, THE FOLLOWING
48 COURSES AND DISTANCES:
49 SOUTH 62 DEGREES 07 MINUTES 40 SECONDS EAST 108.15 FEET;

1 SOUTH 69 DEGREES 02 MINUTES 15 SECONDS EAST 41.37 FEET;
2 SOUTH 71 DEGREES 09 MINUTES 55 SECONDS EAST 131.42 FEET AND SOUTH 70
3 DEGREES 39 MINUTES 30 SECONDS EAST 130.63 FEET TO LANDS NOW OR FORMERLY
4 BELONGING TO MILDRED RICHARDS;

5 THENCE RUNNING ALONG SAID LANDS OF RICHARDS:
6 SOUTH 70 DEGREES 51 MINUTES 00 SECONDS EAST 142.94 FEET AND
7 NORTH 83 DEGREES 46 MINUTES 50 SECONDS EAST 347.97 FEET TO LANDS NOW OR
8 FORMERLY BELONGING TO RUDOLPH W. AND ARLENE J. ANGELMAIER;

9 THENCE RUNNING ALONG SAID LANDS OF ANGELMAIER SOUTH 89 DEGREES 50
10 MINUTES 10 SECONDS EAST 76.59 FEET TO LANDS NOW OR FORMERLY BELONGING TO
11 RICHARD F. AND JACQUELINE J. MARKERT;

12 THENCE TURNING AND RUNNING ALONG SAID LANDS OF MARKERT:
13 SOUTH 07 DEGREES 02 MINUTES 20 SECONDS EAST 160.64 FEET AND
14 SOUTH 71 DEGREES 55 MINUTES 30 SECONDS EAST 200.00 FEET TO A POINT ON
15 THE WESTERLY LINE OF HILL STREET;

16 THENCE TURNING AND RUNNING ALONG SAID WESTERLY LINE OF HILL STREET, THE
17 FOLLOWING COURSES AND DISTANCES;
18 SOUTH 14 DEGREES 38 MINUTES 35 SECONDS WEST 49.32 FEET;
19 SOUTH 16 DEGREES 08 MINUTES 10 SECONDS WEST 56.36 FEET;
20 SOUTH 13 DEGREES 18 MINUTES 50 SECONDS WEST 99.54 FEET;
21 SOUTH 14 DEGREES 14 MINUTES 35 SECONDS WEST 84.92 FEET;
22 SOUTH 11 DEGREES 37 MINUTES 20 SECONDS WEST 114.06 FEET;
23 SOUTH 08 DEGREES 59 MINUTES 35 SECONDS WEST 99.42 FEET;
24 SOUTH 12 DEGREES 17 MINUTES 45 SECONDS WEST 40.50 FEET;
25 SOUTH 05 DEGREES 43 MINUTES 10 SECONDS WEST 34.18 FEET;
26 SOUTH 15 DEGREES 19 MINUTES 25 SECONDS WEST 92.09 FEET;
27 SOUTH 03 DEGREES 49 MINUTES 35 SECONDS WEST 33.30 FEET;
28 SOUTH 02 DEGREES 33 MINUTES 55 SECONDS EAST 76.93 FEET AND
29 SOUTH 04 DEGREES 26 MINUTES 50 SECONDS EAST 23.84 FEET TO LANDS NOW OR
30 FORMERLY BELONGING TO MATHIAS AND MARY ANN SAUTNER;

31 THENCE TURNING AND RUNNING ALONG SAID LANDS OF SAUTNER, THE FOLLOWING
32 COURSES AND DISTANCES:
33 NORTH 78 DEGREES 18 MINUTES 40 SECONDS EAST 142.45 FEET;
34 NORTH 77 DEGREES 20 MINUTES 15 SECONDS WEST 105.38 FEET AND
35 SOUTH 14 DEGREES 50 MINUTES 30 SECONDS WEST 209.12 FEET TO A POINT;

36 THENCE CONTINUING ALONG LANDS OF SAUTNER, AND ALSO ALONG LANDS NOW OR
37 FORMERLY BELONGING TO NICOLAS AND DONNA PYRGOUZIS AND LANDS NOW OR
38 FORMERLY BELONGING TO DELMER AND GERTRUDE BENNETT;
39 SOUTH 18 DEGREES 55 MINUTES 30 SECONDS WEST 306.97 FEET AND SOUTH 13
40 DEGREES 31 MINUTES 10 SECONDS WEST 23.10 FEET TO LANDS NOW OR FORMERLY
41 BELONGING TO GEORGE A. STOLL;

42 THENCE RUNNING ALONG SAID LANDS OF STOLL:
43 SOUTH 16 DEGREES 26 MINUTES 50 SECONDS WEST 156.97 AND
44 SOUTH 74 DEGREES 09 MINUTES 00 SECONDS EAST 285.66 FEET TO LANDS NOW OR
45 FORMERLY BELONGING TO THOMAS J. ALTIZIO;

46 THENCE RUNNING ALONG SAID LANDS OF ALTIZIO:

1 SOUTH 15 DEGREES 42 MINUTES 00 SECONDS WEST 95.03 FEET AND SOUTH 74
2 DEGREES 40 MINUTES 00 SECONDS EAST 175.78 FEET TO THE WESTERLY SIDE OF
3 HILL STREET;

4 THENCE TURNING AND RUNNING ALONG SAID HILL STREET SOUTH 08 DEGREES 45
5 MINUTES 40 SECONDS WEST 50.33 FEET TO LANDS NOW OR FORMERLY BELONGING TO
6 ERNEST E. AND JOAN B. HILL;

7 THENCE TURNING AND RUNNING ALONG SAID LANDS OF HILL AND ALSO LANDS NOW
8 OR FORMERLY BELONGING TO L. & R. ASSOCIATES AND LANDS NOW OR FORMERLY
9 BELONGING TO EDWARD J. AND MARY ANN M. DICKAN:

10 NORTH 74 DEGREES 40 SECONDS 00 MINUTES WEST 207.14 FEET AND SOUTH 17
11 DEGREES 27 MINUTES 40 SECONDS WEST 326.65 FEET TO LANDS NOW OR FORMERLY
12 BELONGING TO CHARLES V. JR. AND PATRICIA A. MILLER;

13 THENCE RUNNING ALONG SAID LANDS OF MILER AND ALSO ALONG LANDS NOW OR
14 FORMERLY BELONGING TO BRIAN AND ELIZABETH ALEXANDER, LANDS NOW OR
15 FORMERLY BELONGING TO JAMES AND ANTOINETTE ROCHE, LANDS NOW OR FORMERLY
16 BELONGING TO MURRY AND MARGARET RAUCHER, LANDS NOW OR FORMERLY BELONGING
17 TO EMILIO AND LILLIAN GUATTRONE, LANDS NOW OR FORMERLY BELONGING TO
18 JOSEPH KOLLAR AND LANDS NOW OR FORMERLY BELONGING TO EDWIN E. AND PATRI-
19 CIA CARLSON:

20 SOUTH 18 DEGREES 11 MINUTES 00 SECONDS WEST 752.92 FEET AND
21 SOUTH 67 DEGREES 13 MINUTES 00 SECONDS EAST 283.48 FEET TO THE WESTERLY
22 SIDE OF HILL STREET;

23 THENCE TURNING AND RUNNING ALONG SAID HILL STREET SOUTH 14 DEGREES 19
24 MINUTES 44 SECONDS WEST 50.55 FEET TO LANDS NOW OR FORMERLY BELONGING TO
25 OWEN AND LESLIE STEPHENS:

26 THENCE TURNING AND RUNNING ALONG SAID LANDS OF STEPHENS:
27 NORTH 67 DEGREES 13 MINUTES 00 SECONDS WEST 290.02 FEET AND
28 SOUTH 21 DEGREES 45 MINUTES 42 SECONDS WEST 184.17 FEET TO LANDS NOW OR
29 FORMERLY BELONGING TO BERNARD C. AND DIANE S. COWDEN:

30 THENCE RUNNING ALONG SAID LANDS OF COWDEN, SOUTH 22 DEGREES 04 MINUTES
31 36 SECONDS WEST 138.88 FEET TO LANDS NOW OR FORMERLY BELONGING TO JOSEPH
32 AND HELEN KOLLAR:

33 THENCE RUNNING ALONG SAID LANDS OF KOLLAR:
34 SOUTH 19 DEGREES 21 MINUTES 40 SECONDS WEST 258.67 FEET AND
35 SOUTH 72 DEGREES 27 MINUTES 10 SECONDS EAST 332.87 FEET TO THE WESTERLY
36 SIDE OF HILL STREET;

37 THENCE TURNING AND RUNNING ALONG SAID HILL STREET, THE FOLLOWING COURSES
38 AND DISTANCES:
39 SOUTH 23 DEGREES 33 MINUTES 50 SECONDS WEST 204.15 FEET;
40 SOUTH 31 DEGREES 49 MINUTES 40 SECONDS WEST 63.05 FEET;
41 SOUTH 34 DEGREES 31 MINUTES 00 SECONDS WEST 32.61 FEET;
42 SOUTH 38 DEGREES 34 MINUTES 10 SECONDS WEST 19.38 FEET;
43 SOUTH 41 DEGREES 54 MINUTES 50 SECONDS WEST 164.86 FEET;
44 SOUTH 42 DEGREES 46 MINUTES 10 SECONDS WEST 149.21 FEET;
45 SOUTH 43 DEGREES 20 MINUTES 47 SECONDS WEST 201.26 FEET;
46 SOUTH 42 DEGREES 42 MINUTES 55 SECONDS WEST 101.56 FEET;
47 SOUTH 36 DEGREES 19 MINUTES 05 SECONDS WEST 65.03 FEET AND

1 SOUTH 37 DEGREES 23 MINUTES 25 SECONDS WEST 94.84 FEET TO THE POINT OR
2 PLACE OF BEGINNING.

3 EXCEPTING FROM THE ABOVE DESCRIBED PARCEL 1, A PARCEL OF LAND NOW OR
4 FORMERLY BELONGING TO CENTRAL HUDSON GAS AND ELECTRIC CORP, BOUNDED AND
5 DESCRIBED AS FOLLOWS:

6 COMMENCING AT A POINT ON THE WESTERLY LINE OF RED MILLS ROAD, WHERE THE
7 SAME IS INTERSECTED BY THE NORTHERLY LINE OF LOT 70, AS SHOWN ON A MAP
8 ENTITLED "MAP OF RED MILLS II" SAID MAP FILED IN PUTNAM COUNTY CLERK'S
9 OFFICE OF LAND RECORDS, ON JUNE 16, 1965, AS MAP NO. 974B;

10 THENCE RUNNING ALONG SAID FILED MAP NO. 974B:
11 NORTH 58 DEGREES 31 MINUTES 15 SECONDS WEST 187.05 FEET;
12 SOUTH 31 DEGREES 28 MINUTES 45 SECONDS WEST 304.69 FEET AND
13 NORTH 58 DEGREES 31 MINUTES 15 SECONDS WEST 93.01 FEET TO A POINT ON THE
14 EASTERLY LINE OF LANDS AS SHOWN ON A MAP ENTITLED "RICHSTONE ESTATES"
15 SAID MAP FILED IN THE PUTNAM COUNTY CLERK'S OFFICE, DIVISION OF LAND
16 RECORDS, ON JULY 15, 1985, AS MAP NO. 2059;

17 THENCE TURNING AND RUNNING ALONG THE EASTERLY LINE OF LAND AS SHOWN ON
18 SAID FILED MAP NO. 2059 THE FOLLOWING COURSES AND DISTANCES:
19 NORTH 05 DEGREES 36 MINUTES 55 SECONDS EAST 115.53 FEET;
20 NORTH 04 DEGREES 18 MINUTES 15 SECONDS EAST 102.10 FEET AND
21 NORTH 06 DEGREES 30 MINUTES 15 SECONDS EAST 165.10 FEET TO A POINT;

22 THENCE RUNNING THROUGH PARCEL 1:
23 NORTH 05 DEGREES 34 MINUTES 25 SECONDS EAST 35.55 FEET AND
24 SOUTH 87 DEGREES 25 MINUTES 20 SECONDS EAST 127.79 FEET TO THE POINT OR
25 PLACE OF BEGINNING, SAID POINT BEING THE NORTHWEST CORNER OF THE HEREIN
26 DESCRIBED PARCEL:

27 THENCE RUNNING ALONG SAID HEREIN DESCRIBED PARCEL THE FOLLOWING COURSES
28 AND DISTANCES:
29 SOUTH 87 DEGREES 25 MINUTES 20 SECONDS EAST 50.25 FEET;
30 SOUTH 03 DEGREES 07 MINUTES 37 SECONDS EAST 148.10 FEET;
31 SOUTH 86 DEGREES 52 MINUTES 23 SECONDS WEST 50.00 FEET;
32 NORTH 03 DEGREES 07 MINUTES 37 SECONDS WEST 153.09 FEET TO THE POINT OR
33 PLACE OF BEGINNING.

34 PARCEL 2:

35 ALL THAT CERTAIN PIECE OR PARCEL OF LAND, SITUATE, LYING AND BEING IN
36 THE TOWN OF CARMEL, COUNTY OF PUTNAM AND STATE OF NEW YORK, BOUNDED AND
37 DESCRIBED AS FOLLOWS:

38 BEGINNING AT A POINT ON THE WESTERLY SIDE OF HILL STREET, WHERE THE SAME
39 IS INTERSECTED WITH THE SOUTHERLY LINE OF LOT 2, AS SHOWN ON A MAP ENTI-
40 TLED "SUBDIVISION PLAT KNOWN AS SIMONE PROPERTIES", SAID MAP FILED IN
41 THE PUTNAM COUNTY CLERK'S OFFICE, DIVISION OF LAND RECORDS, ON FEBRUARY
42 28, 1980, AS MAP NO. 1754;

43 THENCE RUNNING ALONG HILL STREET:
44 SOUTH 15 DEGREES 04 MINUTES 00 SECONDS WEST 347.44 FEET AND

1 SOUTH 12 DEGREES 23 MINUTES 25 SECONDS WEST 125.00 FEET TO THE NORTHERLY
2 END OF A CURVE CONNECTING THE NORTHERLY LINE OF RED MILLS ROAD TO THE
3 WESTERLY LINE OF HILL STREET;

4 THENCE RUNNING ALONG SAID NORTHERLY LINE OF RED MILLS ROAD, ALONG A
5 CURVE TO THE RIGHT, HAVING A RADIUS OF 25.00 FEET, A CENTRAL ANGLE OF 91
6 DEGREES 57 MINUTES 40 SECONDS AND A DISTANCE OF 40.13 FEET TO A POINT OF
7 TANGENCY;

8 THENCE CONTINUING ALONG SAID RED MILLS ROAD, NORTH 75 DEGREES 38 MINUTES
9 55 SECONDS WEST 44.76 FEET TO A POINT OF CURVE;

10 THENCE CONTINUING ALONG SAID RED MILLS ROAD ALONG A CURVE TO THE LEFT,
11 HAVING A RADIUS OF 175.00 FEET, A CENTRAL ANGLE OF 23 DEGREES 45 MINUTES
12 47 SECONDS, AND A DISTANCE OF 72.58 FEET TO LANDS NOW OR FORMERLY
13 BELONGING TO NICHOLAS J. AND ELIZABETH B. MAZZEO;

14 THENCE TURNING AND RUNNING ALONG SAID LANDS OF MAZZEO NORTH 25 DEGREES
15 31 MINUTES 25 SECONDS WEST 310.54 FEET TO A POINT ON THE EASTERLY LINE
16 OF LANDS, AS SHOWN ON A MAP ENTITLED "MAP OF RED MILLS I" AS FILED IN
17 THE PUTNAM COUNTY CLERK'S OFFICE, DIVISION OF LAND RECORDS, ON APRIL 15,
18 1963, AS MAP NO. 974;

19 THENCE TURNING AND RUNNING LONG SAID LANDS, AS SHOWN ON FILED MAP NO.
20 974;

21 NORTH 31 DEGREES 28 MINUTES 45 SECONDS EAST 150.67 FEET AND
22 NORTH 11 DEGREES 22 MINUTES 15 SECONDS EAST 136.48 FEET TO LANDS AS
23 SHOWN ON A MAP ENTITLED "SUBDIVISION PLAT KNOWN AS SIMONE PROPERTIES",
24 SAID MAP FILED IN THE PUTNAM COUNTY CLERK'S OFFICE, DIVISION OF LAND
25 RECORDS ON FEBRUARY 28, 1980, AS MAP NO. 1754;

26 THENCE TURNING AND RUNNING ALONG SAID LANDS AS SHOWN ON MAP NO. 1754;
27 SOUTH 75 DEGREES 10 MINUTES 20 SECONDS EAST 184.90 FEET AND
28 SOUTH 73 DEGREES 40 MINUTES 25 SECONDS EAST 117.31 FEET TO THE POINT OR
29 PLACE OF BEGINNING, CONTAINING .062 ACRES, MORE OR LESS.

30 TAX ID: 64.14-1-8

31 BEING THE SAME PROPERTY CONVEYED TO COUNTY OF PUTNAM, GRANTEE, FROM
32 PUTNAM COUNTRY CLUB ASSOCIATES, K LLC, A NEW YORK LIMITED LIABILITY
33 COMPANY D/B/A THE COUNTRY CLUB AT LAKE MACGREGOR, GRANTOR, BY DEED
34 RECORDED 12/29/2003, IN BOOK 1647, PAGE 279 OF THE PUTNAM COUNTY
35 RECORDS.

36 § 4. Should the lands described in section three of this act cease to
37 be used for the purposes described in section one of this act, the lease
38 shall terminate and those lands shall revert to the county of Putnam for
39 public park and recreational purposes. At the time of such reversion,
40 the removal of the cellular tower, associated equipment shelter, backup
41 generators, and telecommunications equipment shall take place and the
42 property shall be returned to its previous state, consistent with park
43 and recreational purposes.

44 § 5. In the event that the county of Putnam received any funding
45 support or assistance from the federal government for the purchase,
46 maintenance or improvement of the parklands set forth in section three
47 of this act, the discontinuance and alienation of such parkland author-

1 ized by the provisions of this act shall not occur until Putnam county
2 has complied with any federal requirements pertaining to the alienation
3 or conversion of parklands, including satisfying the secretary of the
4 interior that the alienation or conversion complies with all conditions
5 which the secretary of the interior deems necessary to assure the
6 substitution of other lands shall be equivalent in fair market value and
7 usefulness to the lands being alienated or converted.
8 § 6. This act shall take effect immediately.